Ajay Bhati(D)I(581/22/Kg) vs Mangla Prasad(New India) on 5 February, 2026

IN THE COURT OF MS. RUCHIKA SINGLA
PRESIDING OFFICER, MACT-01 (CENTRAL)
TIS HAZARI COURTS, DELHI.

DLCT010042082023

MACT No. : 244/2023
FIR No. : 581/2022
PS : Kashmere Gate
u/s : 279/338 IPC

Ajay Bhati
S/o Sh. Gajender Bhati
R/o A-34/3, Main Road,
Gali No. 1, Brahmpuri,
Delhi-110053.

.....Petiti

VERSUS

1. Mangla Prasad (DRIVER)
S/o Sh. Ram Karan
R/o B-281, Jhil Ka Kinare,
Bhalawa Dairy, Delhi.

2. Santosh Kumar Tripathi
S/o Sh. Hari Parasad Tripathi
R/o B-281, Bhalswa Dairy, Delhi.

3. M/s. New India Assurance Company
R/o Scope Minar, Laxmi Nagar, Delhi.

.....Responde

Date of filing of Petition : 22.03.2023
Judgment reserved on : 20.01.2026
Date of Award : 05.02.2026

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1. The Detailed Accident Report (DAR) was filed on 22.03.2023 and was registered as a Motor Accident Claim petition. The DAR revealed that a Road Traffic Accident took place on 10.11.2022 at about 03:30 am at Hanuman Mandir, Yamuna Bazar, Kashmere Gate, Delhi wherein Sh. Ajay Bhati had sustained grievous injury. The accident took place with the vehicle bearing registration No. DL1GC4981 driven rashly and negligently by respondent no. 1 Mangla Prasad, owned by respondent no.2, Santosh Kumar Tripathi and insured with respondent no.3, the New India Assurance Company.

BRIEF FACTS

2. The brief facts that have emerged from the DAR are that on 10.11.2022, on receipt of information of an accident vide DD No. 13A, the information of present accident was handed over to IO/ASI Admane Madhukar. He went to the spot where friend of injured met and informed that the injured was taken to Trauma Center. HC Rajesh also came to the spot and after leaving him at the spot, IO went to the Trauma Center and he found injured vide MLC No. 2644/2023 namely Ajay Bhati. IO collected the MLC from the hospital and recorded the statement of the injured. Thereafter, IO registered FIR on basis of statement of injured and MLC under Section 279/337 IPC.

3. During the course of investigation, IO went to the spot and prepared the site plan. IO found both the vehicles involved in the accident at the spot, which he took into his custody. No CCTV footage RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 12:58:43 +0530 found from the spot. Thereafter, owner of the offending vehicle was served with notice U/s 133 MV Act to which he replied that at the time of accident, the vehicle was driven by Sh. Mangla Prasad and the driver was handed over to the IO. IO interrogated him and arrested him and documents of the offending vehicle and the offending vehicle were taken by the IO in his custody. Further, Sh. Mangla Prasad produced his surety and he was released on bail. Thereafter, IO verified the documents of the offending vehicle from the concerned authority which were found to be correct. Both the vehicles were got mechanically examined by the IO and the vehicles were released on superdari.

4. Thereafter, MLC was deposited in the hospital for final opinion and the injuries were opined to be "grievous". Upon this IO changed Section 337 to Section 338 IPC. After completion of investigation, chargesheet for the offences u/s 279/338 IPC was filed against the driver of the offending vehicle, Mr Mangla Prasad before the concerned Ld. JMFC and the DAR was filed before this Tribunal.

WRITTEN STATEMENTS

5. WS was filed by the respondent no.1 and 2 on 26.05.2023. It was stated by the respondents that the accident was caused due to the rash and negligent driving of the petitioner as he was driving his motorcycle at a fast speed carrying two pillion riders, in violation of the traffic rules. Further, it is stated that the petitioner had hit the vehicle of the respondents from behind. It was stated that the respondent no.1 was driving his vehicle as per the traffic rules and regulations and there was no negligent driving on his behalf. Hence, it is stated that the accident Digitally signed RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 12:58:52 +0530 was not caused by the respondents

and they were not liable to pay any compensation to the petitioner.

6. Separate WS was filed on behalf of respondent no. 3. It was admitted that the offending vehicle was insured with the respondent no. 2 company vide policy No. 36170031220100000460 valid from 01.06.2022 to 31.05.2023. However, it was stated that no liability could be imposed on the respondent no.3 unless the rash and negligent act of the respondent no.1 could be proved.

ISSUES

7. On the basis of the pleading of the parties, vide order dated 05.03.2024, this Tribunal framed the following issues:

> 1. Whether the petitioner/injured suffered grievous injuries in an accident that took place on 10.11.2022 at about 03:50 hours at Hanuman Mandir, Yamuna Bazar, Kashmere Gate, Delhi involving vehicle bearing registration no. DL1GC 4981 driven rashly and negligently by respondent no. 1 Mangla Prasad and owned by respondent no. 2 Santosh Kumar? OPP
>
> 2. Whether the petitioner/injured is entitled for compensation? If so, to what amount and from whom?

OPP.

3. Relief.

PETITIONER'S EVIDENCE

8. The petitioner/injured examined himself as PW-1. He tendered his evidence by way of affidavit which is Ex.PW-1/A and the same bears his signatures at points-A & ☐ He relied upon the following RUCHIKA RUCHIKA SINGLA SINGLA Date: 2026.02.05 12:58:58 +0530 documents:

> 1. Copy of Aadhar Card is Ex. PW1/1.
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> 2. The MLC of deponent is Ex. PW1/2.
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> 3. The chargesheet/DAR alongwith documents is Ex. PW1/3 (colly).
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> 4. Original medical record/bills are Ex. PW1/4 (colly).

9. Thereafter, PW1 was duly cross examined by the Ld. Counsel for respondents. Thereafter, PE was closed vide order dated 10.11.2025.

RESPONDENT'S EVIDENCE

10. It was stated by the Ld. Counsels for respondents that no evidence was to be led on behalf of respondents. Hence, RE was closed vide order dt. 23.12.2025.

FINAL ARGUMENTS

11. The Petitioner has filed his duly filled Form XIV and financial statement of the injured was recorded. Final arguments were heard on behalf of the petitioner and respondents.

FINDINGS & OBSERVATIONS

12. I have heard Ld. Counsel for the petitioner and Ld. Counsel for respondents and perused the record. My findings on the various issues are as under:-

> ISSUE NO.1:
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> Whether the petitioner/injured suffered grievous RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 12:59:06 +0530 injuries in an accident that took place on 10.11.2022 at about 03:50 hours at Hanuman Mandir, Yamuna Bazar, Kashmere Gate, Delhi involving vehicle bearing registration no. DL1GC 4981 driven rashly and negligently by respondent no. 1 Mangla Prasad and owned by respondent no. 2 Santosh Kumar?

13. The onus to prove this issue was upon the petitioner. It is the case of the petitioner that on 10.11.2022 at about 03:50 am, he was returning home from Daryaganj on his motorcycle and reached at Hanuman Mandir, Yamuna Bazar, Kashmere Gate, Delhi, when the driver of the offending vehicle i.e. the respondent no. 1 came very fast and carelessly in a negligent manner and hit his vehicle with great force. It is stated that due to the said accident, the petitioner fell from his vehicle and he suffered injuries. The petitioner has reiterated the said facts on oath as PW1. It is further submitted that both the vehicles were found at the spot by the IO. The petitioner was treated at the hospital wherein it has specifically mentioned that the injuries are due to a road traffic accident. Hence, it is submitted that it is proved that the respondent no. 1 was driving the negligent in a rash and negligent manner due to which the petitioner suffered injuries.

14. Per contra, it is submitted by Ld. Counsel for respondent no. 3 that the petitioner was inebriated at the time of the accident. Further, he had 4 other persons on his motorcycle and thus, he lost balance of the same. Hence, the petitioner is completely liable for the said accident. Digitally signed by RUCHIKA RUCHIKA SINGLA SINGLA Date:

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15. Record perused.

16. In the present case, it is not disputed that the accident occurred between the vehicle of the petitioner and the offending vehicle. It is also admitted that both the vehicles were found by the IO

at the spot in accidental condition as the injured had been taken to the hospital upon the accident. It is pertinent to mention here that in the proceedings before the claims tribunal, the facts are to be established on the basis of preponderance of probabilities and not by the strict rules of evidence or the higher standard of beyond reasonable doubt as required in criminal cases. The burden of proof in the present cases is much lower than as placed in civil or criminal cases. In Bimla Devi & Ors. v. Himachal Road Transport Corporation & Ors (2009) 13 SC 530, it has been held by Hon'ble Supreme Court of India that negligence must be decided on the touchstone of preponderance of probabilities and a holistic view must be adopted in reaching a conclusion.

17. Further, it is also pertinent to note that the respondent no. 1 was chargesheeted by the IO under Section 281/125(B) BNS (old Section 279/338 IPC). In National Insurance Co. Ltd. v. Pushpa Rana 2009 ACJ 287 and United India Insurance Co. Ltd. v. Deepak Goel & Ors, 2014 (2) TAC 846 (Del) decided by the Coordinate Bench of the Hon'ble Delhi High Court, it was held as under :-

> ".....where the claimants filed either the certified copies of the criminal record or the criminal record showing the completion of investigation by police or issuance of charge sheet under Section 279/304A IPC or the certified copy of FIR or the recovery of the mechanical inspection report of RUCHIKA SINGLA by RUCHIKA SINGLA Date: 2026.02.05 12:59:20 +0530 the offending vehicle, then these documents are sufficient proof to reach to a conclusion that the driver was negligent particularly when there is no defence available from the side of driver."

18. Reliance is also being placed upon the judgment of Hon'ble Delhi High Court in case Bajaj Allianz General Insurance Co. Ltd. v. Meera Devi, 2021 LawSuit (Del) wherein it was held that ".....in view of Delhi Motor Accident Claim Tribunal Rules, 2008, contents of DAR has to be presumed to be correct and read in evidence without formal proof of the same unless proof to the contrary was produced."

19. Further, as mentioned above, the factum of the accident is not disputed. Both the involved vehicles were found by the IO at the spot in an accidental condition. Even otherwise, the petitioner was unknown to respondent no.1 prior to the accident and admittedly, there was no prior enmity with respondent no. 1 and hence, it is beyond comprehension as to why the petitioner will implicate respondent no.1 falsely, had he not been driving the offending vehicle.

20. It is a settled law that the petitioner cannot be expected to prove the accident beyond reasonable doubts and the principle of res ipse loquitor should apply which means that the "accident speaks for itself". Thus, once it has been established in DAR and chargesheet that the accident had taken place, the burden shifts on the respondents to prove that they were not responsible for the accident which the respondents have failed to discharge. No evidence was led by the respondents no. 1 & 2 to discharge this onus. Hence, an adverse RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 12:59:28 +0530 inference is drawn against the respondents. In this regard, reliance is placed on the judgments of Hon'ble High Court of Delhi in the cases of Teja Singh Vs Suman & Ors., MAC. APP. 1111/2018 & CM APPL. 52384/2018, 52386/2018, date of decision 06/12/2019; MAC. APP. 428/2018, titled as The Oriental Insurance Co. Ltd. Vs Kamla Devi & Ors, date of decision

08.11.2019 and MAC. APP. 690/2017 & CM APPL. 28108/2017, titled as Reliance General Insurance Company Ltd. Vs Mona & Ors., date of decision 15.10.2019, which had relied upon the judgment in the case of Cholamandalam Insurance Co. Ltd. Vs Kamlesh 2009(3) AD Delhi 310.

21. The Hon'ble Supreme Court in Mangla Ram v. Oriental Insurance Co. Ltd. (2018) 5 SCC 656 has laid down in paragraphs 27 & 28:

> "27. ...This Court in a recent decision in Dulcina Fernandes, noted that the key of negligence on the part of the driver of the offending vehicle as set up by the claimants was required to be decided by the Tribunal on the touchstone of preponderance of probability and certainly not by standard of proof beyond reasonable doubt. Suffice it to observe that the exposition in the judgments already adverted to by us, filing of chargesheet against Respondent 2 prima facie points towards his complicity in driving the vehicle negligently and rashly. Further, even when the accused were to be acquitted in the criminal case, this Court opined that the same may be of no effect on the assessment of the liability required in respect of motor accident cases by the Tribunal.
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> 28. Reliance placed upon the decisions in Minu B. Mehta and Meena Variyal, by the respondents, in our opinion, is of no avail. The dictum in these cases is on the matter in issue RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 12:59:38 +0530 in the case concerned. Similarly, even the dictum in Surender Kumar Arora will be of no avail. In the present case, considering the entirety of the pleadings, evidence and circumstances on record and in particular the finding recorded by the Tribunal on the factum of negligence of Respondent 2, the driver of the offending jeep, the High Court committed manifest error in taking a contrary view which, in our opinion, is an error apparent on the face of record and manifestly wrong."

22. It has not been disputed that respondent No.1 has been charge-sheeted in the aforesaid FIR for offences punishable under Section 279/338 IPC for rash and negligent driving of the offending vehicle. In view of the same, considering the facts and circumstances, the unrebutted testimony of the petitioner and the documents filed thereto, the court is satisfied that the accident was caused due to the rash and negligent driving of the respondent no. 1. From the DAR, it also stands established that respondent no. 2 was the registered owner of the offending vehicle. It is also an admitted position that the offending vehicle was insured with respondent no.3. The factum of the said insurance is also admitted by the respondent no.3 insurance company.

Contributory Negligence

23. It is submitted by Ld. Counsel for respondent no. 3 that in the present matter, the petitioner is solely responsible for the accident as he was having four other persons as pillion riders on his motorcycle. This fact has been mentioned in one of the medical documents of the petitioner. It is submitted that the petitioner was also drunk at that time. Hence, he responsible for the said accident. Digitally signed RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 12:59:45

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24. Record perused.

25. In the FIR and all the statements of the petitioner, he has admitted that there were three persons on the motorcycle. The respondents no. 1 and 2 have also stated in their WS that there were three persons on the said motorcycle. There is no other evidence on record that there were five persons on the motorcycle. Hence, a rogue mention on one of the medical documents is not sufficient to prove that the petitioner was carrying four pillion riders with him.

26. Having said that, it is matter of record that as per the relevant rules, only one pillion rider is allowed on a two-wheeler. However, the same shall be itself not imply that the petitioner was driving the vehicle rashly. In Mohammed Siddique vs National Insurance Company (2020) 2 SCALE 565, the Hon'ble Supreme Court has held that:

> "12. It is seen from the material on record that the accident occurred at about 2:00 a.m. on 5.09.2008. Therefore, there was no possibility of heavy traffic on the road. The finding of fact by the Tribunal, as confirmed by the High Court, was that the motor cycle in which the deceased was travelling, was hit by the car from behind and that therefore it was clear that the accident was caused by the rash and negligent driving of the car. In fact, the High Court confirms in paragraph 4 of the impugned order that the motor cycle was hit by the car from behind. But it nevertheless holds that 3 RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 12:59:54 +0530 persons on a motor cycle could have added to the imbalance. The relevant portion of paragraph 4 of the order of the High Court reads as follows:
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> "On careful assessment of the evidence led, this Court finds substance in the plea of the insurance company. While it is correct that the offending car had no business to strike from behind against the motorcycle moving ahead of it, even if the motor cycle was changing lane to allow another vehicle to overtake, the fact that a motor vehicle meant for only two persons to ride was carrying, besides the driver, two persons on the pillion would undoubtedly have added to the imbalance."

13. But the above reason, in our view, is flawed. The fact that the deceased was riding on a motor cycle along with the driver and another, may not, by itself, without anything more, make him guilty of contributory negligence. At the most it would make him guilty of being a party to the violation of the law. Section 128 of the Motor Vehicles Act, 1988, imposes a restriction on the driver of a two wheeled motor cycle, not to carry more than one person on the motor cycle. Section 194C inserted by the Amendment Act 32 of 2019, prescribes a penalty for violation of safety measures for motor cycle drivers and pillion riders. Therefore, the fact that a person was a pillion rider on a motor cycle along with the driver and one more person on the pillion, may be a violation of the law. But such violation by itself, without anything more, cannot lead to a finding of contributory RUCHIKA RUCHIKA SINGLA SINGLA Date: 2026.02.05 13:00:00 +0530 negligence, unless it is established that his very act of riding along with two others, contributed either to the accident or to the impact

of the accident upon the victim. There must either be a causal connection between the violation and the accident or a causal connection between the violation and the impact of the accident upon the victim. It may so happen at times, that the accident could have been averted or the injuries sustained could have been of a lesser degree, if there had been no violation of the law by the victim. What could otherwise have resulted in a simple injury, might have resulted in a grievous injury or even death due to the violation of the law by the victim. It is in such cases, where, but for the violation of the law, either the accident could have been averted or the impact could have been minimized, that the principle of contributory negligence could be invoked. It is not the case of the insurer that the accident itself occurred as a result of three persons riding on a motor cycle. It is not even the case of the insurer that the accident would have been averted, if three persons were not riding on the motor cycle. The fact that the motor cycle was hit by the car from behind, is admitted. Interestingly, the finding recorded by the Tribunal that the deceased was wearing a helmet and that the deceased was knocked down after the car hit the motor cycle from behind, are all not assailed. Therefore, the finding of the High Court that 2 persons on the pillion of the motor cycle, could have added to the imbalance, is nothing but presumptuous and is not based either upon pleading or upon the evidence on record. Nothing was extracted from PW3 to RUCHIKA RUCHIKA SINGLA SINGLA Date: 2026.02.05 13:00:07 +0530 the effect that 2 persons on the pillion added to the imbalance.

14. Therefore, in the absence of any evidence to show that the wrongful act on the part of the deceased victim contributed either to the accident or to the nature of the injuries sustained, the victim could not have been held guilty of contributory negligence. Hence the reduction of 10% towards contributory negligence, is clearly unjustified and the same has to be set aside. "

> 27. In the present case, no evidence has been led to prove the negligence of the petitioner. Hence, he cannot be held guilty of contributory negligence.
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> 28. Secondly, it is argued by Ld. Counsel for respondent no.3 that the petitioner was under the influence of liquor at the time of the accident. However, again, no evidence has been led to prove that the alcohol content in his blood rendered him incapable to drive the motorcycle. The permissible limit is 30 mg/dl. Only where the alcohol content is more than that, then a question regarding the capacity of a person to drive arises. Here, there is no evidence regarding the presence of alcohol content in the body of the petitioner. Hence, the petitioner cannot be held liable for contributory negligence in the absence of the same.
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> RUCHIKA SINGLA SINGLA Date:
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> 2026.02.05 13:00:15 +0530 The injury:
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> 29. Further, the onus to prove that the petitioner had suffered injuries by way of the said accident was on the petitioner. It is the matter of record that due to the accident, the petitioner suffered injuries. To prove the same, the petitioner has relied upon his MLC dated 10.11.2022 issued by Lok Nayak Hospital, Delhi Ex. PW1/2 as per which he was brought to the hospital with history of road traffic accident. He suffered

various injuries on his leg. He has further proved his other treatment papers as Ex. PW1/4. His Discharge Summary dated 18.11.2022 is on record as per which he suffered fracture in both bones in left leg. The procedure undertaken was debridement and external fixator application. He remained admitted in the hospital from 10.11.2022 till 18.11.2022. Further, it was mentioned that he needed follow-up in Plastic Surgery Department.

30. In view of the above discussion, this Tribunal is of the opinion that on the scales of preponderance of probabilities, the petitioner has proved that the accident in question took place due to rash and negligent driving of offending vehicle being driven by its driver/respondent no. 1 on the date and time of the accident and that due to the said accident, the petitioner had suffered grievous injury.

Accordingly, issue no. 1 is decided in favour of the petitioner and against the respondents.

ISSUE NO. 2:

Whether the petitioner/injured is entitled for compensation? If so, to what amount and from whom? OPP. RUCHIKA by SINGLA SINGLA Date: 2026.02.05 13:00:23 +0530

31. The onus to prove this issue was also upon the petitioner. In view of the observations as given in issue no.1, the petitioner is entitled for compensation. In the case of Raj Kumar Vs. Ajay Kumar & Ors.

(2011) 1 SCC 34, Hon'ble Supreme Court held as under:

"General principles relating to compensation in injury cases

4. The provision of The Motor Vehicles Act, 1988 (`Act' for short) makes it clear that the award must be just, which means that compensation should, to the extent possible, fully and adequately restore the claimant to the position prior to the accident. The object of awarding damages is to make good the loss suffered as a result of wrong done as far as money can do so, in a fair, reasonable and equitable manner. The Court or tribunal shall have to assess the damages objectively and exclude from consideration any speculation or fancy, though some conjecture with reference to the nature of disability and its consequences, is inevitable. A person is not only to be compensated for the physical injury, but also for the loss which he suffered as a result of such injury. This means that he is to be compensated for his inability to lead a full life, his inability to enjoy those normal amenities which he would have enjoyed but for the injuries, and his inability to earn as much as he used to earn or could have earned. (See C. K. Subramonia Iyer vs. T. Kunhikuttan Nair - AIR 1970 SC 376, R. D. Hattangadi Vs. Pest Control (India) Ltd. - 1995 (1) SCC 551 and Baker vs. Willoughby - 1970 AC 467).

5. The heads under which compensation is awarded in personal injury cases are the following :

Pecuniary damages (Special Damages)

(i) Expenses relating to treatment, hospitalization, medicines, transportation, nourishing food, and miscellaneous expenditure.

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(ii) Loss of earnings (and other gains) which the injured would have made had he not been injured, comprising :

(a) Loss of earning during the period of treatment;

(b) Loss of future earnings on account of permanent disability.

(iii) Future medical expenses.

Non-pecuniary damages (General Damages)

(iv) Damages for pain, suffering and trauma as a consequence of the injuries.

(v) Loss of amenities (and/or loss of prospects of marriage).

(vi) Loss of expectation of life (shortening of normal longevity).

In routine personal injury cases, compensation will be awarded only under heads (i), (ii)(a) and (iv)."

32. In view of the above law laid down by Hon'ble Supreme Court of India, in injury cases, award needs to be passed only under heads of medical expenses, loss of earning during treatment period and damages for pain, suffering and trauma. This is a case where the petitioner has claimed that he suffered grievous injury due to the accident, hence, this Tribunal now proceeds further step by step to decide the compensation/award under different heads applicable to the present matter in light of above preposition.

Medical expenses:

33. The petitioner has claimed a sum of Rs.14,328/- towards medical expenses. However, the petitioner has placed bills to the tune of Rs. 13,478/- on record. Hence, a sum of Rs. 13,478/- is awarded to him RUCHIKA SINGLA SINGLA Date:

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Loss of income:

34. In this regard, it is submitted by the petitioner that at the time of the accident, he was working as a helper in his uncle's dairy and was earning a sum of Rs. 20,000/- to Rs. 30,000/- pm.

35. Per contra, Ld. Counsel for respondent no. 3 has argued that no evidence has been led by the petitioner to prove the said income. Further, in his affidavit Ex. PW1/A, he has mentioned his income as Rs. 40,000/- to Rs. 50,000/-. However, as no evidence for the same has been led, his income may be assessed as per the minimum wages.

36. Record perused.

37. In the present matter, in his evidence affidavit Ex. PW1/A, the petitioner has mentioned his income as Rs. 40,000/- to Rs. 50,000/-. In the Form IV filed by him, he has stated that he was earning a sum of Rs. 20,000/- to Rs. 30,000/- pm. Then, in his financial statement recorded on 23.12.2025, he has stated that he was earning Rs. 15,000/- per month. No evidence has been led by the petitioner to prove his income. He has also not proved his educational documents. In view of the same, his income shall be assessed as per the minimum wages payable to an unskilled person. The date of the accident is 10.11.2022. Hence, as per the applicable notification, his monthly income is assessed to be Rs.16,792/-. Digitally signed RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 13:00:43 +0530

38. It is argued by Ld. Counsel for the petitioner that due to the accident, the petitioner suffered multiple injuries on his leg. He underwent surgery and remained admitted in the hospital for 7 days. Further, he treatment is still continuing till now. Hence, it is submitted that since the accident, the petitioner was unable to work for 6 months.

39. Record perused.

40. As mentioned above, as per the medical record of the petitioner, he had suffered multiple fractures on his leg. He has further proved his other treatment papers as Ex. PW1/4. His Discharge Summary dated 18.11.2022 is on record as per which he suffered fracture in both bones in left leg. The procedure undertaken was debridement and external fixator application. He remained admitted in the hospital from 10.11.2022 till 18.11.2022. Further, it was mentioned that he needed follow-up in Plastic Surgery Department. He has placed on record an OPD receipt dated 28.04.2025 issued by Dr. Deepak Kumar Arora, Max Hospital as per which he has been advised Corrective Osteotomy with Plate.

41. In view of the nature of the injuries sustained by the petitioner, it could be safely assumed that the petitioner could not have worked for about 6 months due to the injuries. Accordingly, it is held that the petitioner shall be entitled to the loss of income for 6 months i.e. Rs.16,792/- x 6= Rs. 1,00,752/-.

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Special diet:

42. The petitioner is claiming a sum of Rs. 15,000/- towards special diet. Although, there is no bill to support his plea, but keeping in view the nature of injury suffered by the petitioner, it seems that he must have required special diet and must have incurred expenditure towards special diet, therefore, a sum of Rs. 15,000/- is awarded to the petitioner under the head of special diet.

Conveyance charges:

43. The petitioner is claiming a sum of Rs. 15,000/- towards conveyance charges. Admittedly there is no document showing expense on conveyance, however, considering his injuries and repeated visits to the hospital, this Tribunal is of the view that the petitioner must have spent money on conveyance thus, the petitioner is awarded a sum of Rs. 15,000/- towards conveyance charges.

Attendant charges:

44. The petitioner has claimed a sum of Rs. 15,000/- towards attendant charges. Admittedly there is no document showing expense on an attendant. However, considering the period of treatment of the petitioner and his injuries, the petitioner is awarded a sum of Rs. 15,000/- towards attendant charges.

Pain & Suffering:

45. The petitioner/injured has claim Rs. 50,000/- under the head pain and suffering. It is not possible to quantify the compensation admissible to petitioner for the shock, pain and sufferings etc. which he actually suffered because of the above injuries, but as stated above, an RUCHIKA RUCHIKA SINGLA SINGLA Date: 2026.02.05 13:00:59 +0530 effort has to be made to compensate him for the same in a just and reasonable manner. Hence, keeping in view the extent and nature of the injuries suffered by petitioner and duration of the treatment taken by him etc., he is awarded a total amount of Rs. 50,000/- towards pain and sufferings to the petitioner.

Mental and physical shock:

46. The petitioner/injured has claimed Rs. 40,000/- for loss due to mental shock. Although, there is nothing on record to prove the same but keeping in view his injuries, it cannot be denied that he would definitely have suffered mental agony. Hence, a sum of Rs.40,000/- is awarded to the petitioner under head of "Loss due to Mental & Physical Shock".

Loss of amenities:

47. The petitioner/injured has claimed Rs. 30,000/- under this head. Keeping in view his injuries, a sum of Rs. 20,000/- is awarded to the petitioner under this head.

Loss of marriage prospects

48. The petitioner/injured has not claimed any amount under this head.

Disfiguration:

49. The petitioner/injured has claimed Rs. 20,000/- under this head. Keeping in view his injuries, a sum of Rs. 20,000/- is awarded to the petitioner under this head. RUCHIKA by SINGLA SINGLA Date: 2026.02.05 13:01:08 +0530 Loss of earning, inconvenience, disappointment, frustration, mental stress, dejectment and unhappiness in future life etc.:

50. The petitioner has claimed a sum of Rs. 40,000/- under this head. Considering the nature of the injuries suffered by the petitioner, a sum of Rs. 30,000/- is awarded to the petitioner under this head.

Future medical expenses:

51. It is submitted by Ld. Counsel for the petitioner that the petitioner has to undergo a Corrective Osteotomy procedure as advised by the concerned doctor. The estimate cost of the procedure is proved as Ex. PW1/4. Hence, the same may be awarded to the petitioner.

52. Record perused.

53. The petitioner has proved on record his Discharge Summary dated 18.11.2022 as per which he had undergone a procedure involving debridement and external fixator application. Debridement involves involves thoroughly cleaning the wound and removing all hyperkeratotic (thickened skin or callus), infected, and nonviable (necrotic or dead) tissue, foreign debris, and residual material from dressings. He has placed on record an OPD receipt dated 28.04.2025 issued by Dr. Deepak Kumar Arora, Max Hospital as per which he has been advised Corrective Osteotomy with Plate. Osteotomy involves a procedure to correct alignment (e.g., bow legs/knock knees), shorten or lengthen bones, and relieve pressure on damaged joint cartilage.

RUCHIKA SINGLA SINGLA Date:

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54. The estimate for the said procedure issued by Max Hospital is also placed on record as per which the charges for an economy bed shall be Rs. 2,62,450/-. In MACT cases, the compensation is awarded under various heads and if by treatment, the injured can improve his living condition as

were prior to the accident, then such cost can be awarded to the injured. In view of the same, the petitioner is awarded a sum of Rs. 2,62,450/- towards future medical expenses.

55. Further, a lumpsum amount of Rs. 2,00,000/- is awarded for post surgery care, attendant, special diet, follow up etc. Hence, a total sum of Rs. 4,62,450/- is awarded to the petitioner for future medical expenses and care.

56. Accordingly, keeping in view the facts and circumstances, the material on record, and the settled principles and guidelines governing the injury cases like the present one, the compensation is being derived in the present case as under:-

NAME OF HEAD	AMOUNT (in Rupees)
Expenditure on Treatment	Rs. 13,478/-
Monthly income of injured	Rs.16,792/-
Loss of income x 6 months	Rs. 1,00,752/-.
Add future prospects	Nil
Loss of future income (income X % Earning Capacity X Multiplier)	Nil

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Future medical expenses and care	Rs. 4,62,450/-
Expense on special diet	Rs. 15,000/-
Conveyance charges	Rs. 15,000/-
Attendant charges	Rs. 15,000/-

Mental & Physical Shock & Pain & Rs. 50,000+ Rs. 40,000/- = Suffering Rs. 90,000/-

Loss of amenities	Rs. 20,000/-
Disfiguration	Rs. 20,000/-
Loss of marriage prospects	Nil

Loss of earning, inconvenience, Rs. 30,000/-

hardship, disappointment, frustration, mental stress, dejectment and unhappiness in future life etc.	
Total	Rs. 7,81,680/-

57. In the case of Oriental Insurance Company Ltd. Vs. Niru @ Niharika & Ors. SLP no. 22136 of 2024 decided on 14.07.2025, the Hon'ble Supreme Court has upheld awarding of 9% interest per annum. Therefore, it is held that the petitioner shall be entitled to interest @ 9% per annum from the date of filing of DAR i.e. 22.03.2023 till realization. However, vide order dated 19.08.2025, it was directed that the petitioner would not be entitled to interest from that day till conclusion of PE. The PE was concluded on 10.11.2025. Hence, the petitioner would not be entitled to interest from 19.08.2025 to Digitally signed by RUCHIKA RUCHIKA SINGLA SINGLA Date:

2026.02.05 13:01:31 +0530 10.11.2025.

DISBURSEMENT

58. The Financial Statement of petitioner/injured was recorded by this Court/Tribunal. As per the said statement, the monthly expenses of his family are approximately Rs. 50,000/- per month.

59. The Hon'ble Delhi High Court vide orders dated 07.12.2018 & 08.01.2021 in FAO No. 842/2003 under the title Rajesh Tyagi & Ors. Vs. Jaivir Singh & Ors. has given the following directions:

"(i) The bank shall not permit any joint name to be added in the saving account or fixed deposit accounts of the claimants i.e. saving bank accounts of the claimants shall be an individual saving bank account and not a joint account.

(ii) Original fixed deposit shall be retained by the bank in safe custody. However, the statement containing FDR number, FDR amount, date of maturity and maturity amount shall be furnished by bank to the claimants.

(iii) The maturity amount of the FDRs be credited by the ECS in the saving bank account of the claimant near the place of their residence.

(iv) No loan, advance or withdrawal or premature discharge be allowed on the fixed deposits without the permission of the court.

(v) The concerned bank shall not issue any cheque book and/or debit card to claimants. However, in case the debit card and/or cheque book have already been issued, bank shall cancel the same before the disbursement of the award RUCHIKA RUCHIKA SINGLA SINGLA Date: 2026.02.05 13:01:37 +0530 amount. The bank shall debit card(s) freeze the account of claimants so that no debit card be issued in

respect of the account of claimants from any other branch of the bank.

(vi) The bank shall make an endorsement on the passbook of the claimant to the effect, that no cheque books and/or debit card have been issued and shall not be issued without the permission of the Court and the claimant shall produced the passbook with the necessary endorsement before the Court for compliance."

60. However, in a recent judgment passed by the Hon'ble Supreme Court of India titled as Parminder Singh vs Honey Goyal on 18 March, 2025 in S.L.P. (C) No. 4484 OF 2020 has held that :

"17. The case in hand pertains to the compensation awarded under the Motor Vehicles Act. The general practice followed by the insurance companies, where the compensation is not disputed, is to deposit the same before the Tribunal. Instead of following that process, a direction can always be issued to transfer the amount into the bank account(s) of the claimant(s) with intimation to the Tribunal.

17.1 For that purpose, the Tribunals at the initial stage of pleadings or at the stage of leading evidence may require the claimant(s) to furnish their bank account particulars to the Tribunal along with the requisite proof, so that at the stage of passing of the award the Tribunal may direct that the amount of compensation be transferred in the account of the claimant and if there are more than one then in their respective accounts. If there is no bank RUCHIKA RUCHIKA SINGLA SINGLA 13:01:47 Date: 2026.02.05 +0530 account, then they should be required to open the bank account either individually or jointly with family members only. It should also be mandated that, in case there is any change in the bank account particulars of the claimant(s) during the pendency of the claim petition they should update the same before the Tribunal. This should be ensured before passing of the final award. It may be ensured that the bank account should be in the name of the claimant(s) and if minor, through guardian(s) and in no case it should be a joint account with any person, who is not a family member. The transfer of the amount in the bank account, particulars of which have been furnished by the claimant(s), as mentioned in the award, shall be treated as satisfaction of the award. Intimation of compliance should be furnished to the Tribunal."

61. In view of the same, the award amount can now be disbursed in the Savings Bank Account of the petitioner. However, the remaining directions as passed by the Hon'ble High Court shall be complied with.

62. After considering the financial statement of the petitioner, it is held that on realization of the award amount of Rs. 9,68,256/- (Rupees Nine Lakhs Sixty Eight Thousand Two Hundred Sfifty Six only), Rs. 3,68,256/- (Rupees Three Lakhs Sixty Eight Thousand Two Hundred Sfifty Six only) be released to the petitioner/claimant immediately in his bank account maintained at State Bank of India, Tis Hazari Court, Delhi bearing no. 44124431383, IFSC no. Digitally signed RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 13:01:55 +0530 SBIN0000726.

63. The balance amount of Rs.6,00,000/- (Rupees Six Lakhs only) shall be put in 12 monthly fixed deposits in his name in MACAD account of equal amount of Rs. 50,000/- (Rupees Fifty Thousand only) each for a period of 01 month to 12 months respectively, with cumulative interest, in terms of the directions contained in FAO No. 842/2003 dated 07.12.2018 & 08.01.2021. Besides the above said amount, amount of FDRs on maturity, shall automatically be transferred in his saving account maintained in a nationalized bank situated near the place of his residence without the facility of cheque book and ATM card.

64. In compliance of the directions given by Hon'ble High Court in FAO No. 842/2003 dated 08.01.2021, Summary of the Award in the prescribed Format-XVI is as under:

SUMMARY OF AWARD:

Date of Accident:	10.11.2022
Name of the Injured:	Ajay Bhati
Age of the Injured:	Presently 24 years
Occupation of the Injured:	Not proved
Income of the Injured:	Rs. 16,792/- pm
Nature of Injury:	Grievous
Medical Treatment taken:	Lok Nayak Hospital, Delhi

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Period of Hospitalization:	10.11.2022 till 18.11.2022
Whether any permanent: disability?	No

COMPUTATION OF COMPENSATION

Sr. No.	Heads	Awarded by the Claims Tribunal
1.	Pecuniary Loss:	
(i)	Expenditure on Treatment	Rs. 13,478/-
(ii)	Expenditure on Special Diet	Rs. 15,000/-
(iii)	Expenditure on Nursing/Attendant charges	Rs. 15,000/-
(iv)	Expenditure on Conveyance	Rs. 15,000/-
(v)	Monthly income of injured	Rs.16,792/-
(vi)	Loss of income x 6 months	Rs. 1,00,752/-
(vii)	Add future prospects	Nil

viii)	Any other loss which may require any special treatment or aid to the injured for the rest of his life (Future medical expenses and care)	Rs. 4,62,450/-
2.	Non Pecuniary Loss	
(i)	Compensation for mental and physical shock	Rs. 50,000+ Rs. 40,000/- = Rs. 90,000/-
(ii)	Pain and Sufferings	
(iii)	Loss of amenities of life	Rs. 20,000/-
(iv)	Disfiguration	Rs. 20,000/-
(v)	Loss of marriage prospects	Nil
(vi)	Loss of earning, inconvenience, hardships, disappointment, frustration, mental stress, dejectment and unhappiness in future life etc.	Rs. 30,000/-

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3. Disability resulting in loss of earning capacity:

(i) Percentage of disability assessed Nil and nature of disability as permanent or temporary

(ii) Loss of amenities or loss of Nil.

expectation of life span on account of disability

(iii) Percentage of loss of earning Nil capacity in relation to disability

(iv) Loss of future income - (income Nil x % earning capacity x Multiplier)

4. Total Compensation Rs. 7,81,680/-

5. Interest awarded 9%

6. Earlier award amount (which has already been received by the petitioner in terms of previous -

	award passed by Ld. Predecessor) to be deducted from present award amount .	
7.	Interest amount upto the date of award w.e.f. 22.03.2023 till 19.08.2025 and from 10.11.2025 till date.	Rs. 1,69,806.6 + Rs. 16,768.64 = Rs.1,86,575.24 (rounded off to Rs. 1,86,576/-)
8.	Total amount including Interest	Rs. 9,68,256/-
9.	Award amount released	As mentioned in para nos. 62 & 63
10.	Award amount kept in FDRs	Rs. 6,00,000/-
11.	Mode of disbursement of the award amount of the claimant(s)	As mentioned in para nos. 62 & 63
12.	Next date for compliance of the award	06.03.2026

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LIABILITY:

65. It has been established that the offending vehicle was being driven by respondent no.1 and that respondent no.2 is the owner of the same and the offending vehicle was insured with respondent no. 3. Hence, it is directed that the respondent no. 3 shall be liable to pay the compensation to the petitioner. Issue No. 2 is accordingly decided in favour of the petitioner and against the respondents.

RELIEF:

66. The respondent no.3 is directed to deposit a sum of Rs. 7,81,680/- (Rupees Seven Lakhs Eighty One Thousand Six Hundred Eighty only) along with interest @ 9% from the date of filing of DAR i.e. 22.03.2023 till 19.08.2025 and from 10.11.2025 till realization with the Civil Nazir of this Tribunal within 30 days under intimation to the claimant, failing which the said respondent shall be liable to pay interest @ 12% per annum for the period of delay beyond 30 days. Reliance placed on case titled as Oriental Insurance Company Ltd. Vs. Niru @ Niharika & Ors. SLP no. 22136 of 2024 decided on 14.07.2025 by the Hon'ble Supreme Court.

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67. Ahlmad is directed to e-mail an authenticated copy of the award to the insurance company for compliance within the time granted as directed by the Hon'ble Supreme Court of India in WP (Civil) No. 534/2020 titled as Bajaj Allianz General Insurance Co. Pvt. Ltd. Vs. Union of India & Ors. on

16.03.2021. The said respondent is further directed to give intimation of deposit of the compensation amount to the claimant and shall file a compliance report with the Claims Tribunal with respect to the deposit of the compensation amount within 15 days of the deposit with a copy to the Claimant and his counsel.

Ahlmad shall also e-mail an authenticated copy of the award to Branch Manager, SBI, Tis Hazari Courts for information.

A digital copy of this award be forwarded to the parties free of cost.

Ahlmad is directed to send the copy of the award to Ld. Metropolitan Magistrate concerned and Delhi Legal Services Authority in view of Central Motor Vehicles (fifth Amendment) Rules, 2022 [(Directions at serial nos. 39, 40 of Procedure for Investigation of Motor Vehicle Accidents (under Rule 150A)].

Civil Nazir is directed to place a report on record on 06.03.2026 in the event of non-receipt/deposit of the compensation amount within the time granted.

Further, Civil Nazir is directed to maintain the record in Form XVIII in view of Central Motor Vehicles (fifth Amendment) Rules, 2022 [(Directions at serial no. 41 of Procedure for Investigation of Motor Vehicle Accidents (under Rule 150A).

Ahlmad is further directed to comply with the directions passed by the Hon'ble High Court of Delhi in MAC APP No. 10/2021 Digitally signed RUCHIKA by RUCHIKA SINGLA SINGLA Date: 2026.02.05 13:02:32 +0530 titled as New India Assurance Company Ltd. Vs. Sangeeta Vaid & Ors., date of decision : 06.01.2021 regarding digitisation of the records.

File be consigned to Record Room after due compliance.

Announced in the open Court today on this 5th February 2026. Digitally signed by RUCHIKA RUCHIKA SINGLA SINGLA Date: 2026.02.05 13:02:47 +0530 (RUCHIKA SINGLA) PO, MACT-01, CENTRAL DISTRICT, TIS HAZARI COURTS, DELHI.

THE PARTICULARS AS PER FORM-XVII, CENTRAL MOTOR VEHICLES (FIFTH AMENDMENT) RULES, 2022 (PL. SEE RULE 150A) ARE AS UNDER:-

1 Date of Accident 10.11.2022 2 Date of filing of Form-I -

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  First   Accident    Report                              11.11.2022
  (FAR)
3 Date of delivery of Form-II
                                                                 N.A.
  to the victim(s)
4 Date of receipt of Form-III
                                                                 N.A.
  from the Driver
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5	Date of receipt of Form-IV from the Owner	N.A.
6	Date of filing of Form-V-Particulars of the insurance of the vehicle	N.A.
7	Date of receipt of Form-VI from the Victim(s)	22.03.2023
8	Date of filing of DAR	22.03.2023
9	Whether there was any delay or deficiency on the part of the Investigating Officer? If so, whether any action/direction warranted?	NA
10	Date of appointment of the Designated Officer by the Insurance Company	22.03.2023
11	Whether the Designated Officer of the Insurance Company admitted his report within 30 days of the DAR?	Yes

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12	Whether there was any delay or deficiency on the part of the Designated Officer of the Insurance Company? If so, whether any action/direction warranted?	N/A
13	Date of response of the claimant(s) to the offer of the Insurance Company.	N.A.
14	Date of award	05.02.2026
15	Whether the claimant(s) were directed to open savings bank account(s) near their place of residence?	Yes.
16	Date of order by which claimant(s) were directed to open Savings Bank Account(s) near his place of residence and produce PAN card and Aadhar Card and the direction to the bank not	22.03.2023

	to issue any cheque book/debit card to the claimant(s) and make an endorsement to this effect on the passbook(s).	
17	Date on which the claimant(s) produced the passbook of their savings bank account(s) near the place of their residence alongwith the endorsement, PAN card and Aadhar Card?	23.12.2025
18	Permanent residential address of the claimant(s).	As per Award.
19	Whether the claimant(s) savings bank account(s) is near their place of residence?	No.
20	Whether the Claimant(s) were examined at the time of passing of the Award to ascertain his/their financial condition?	Yes. The Financial Statement of the claimant was recorded 23.12.2025.

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by RUCHIKA SINGLA
Date: 2026.02.05 13:03:02 +0530

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SINGLA Date: 2026.02.05 13:03:09 +0530

(RUCHIKA SINGLA)
PO, MACT-01, CENTRAL DISTRICT,
TIS HAZARI COURTS, DELHI.
05.02.2026